MARCHMONT DYNAMICS LTD

STANDARD TERMS AND CONDITIONS (EXCERPT) - VERSION 4, JANUARY 2023

These Standard Terms and Conditions apply to all engagements of Marchmont Dynamics Ltd save to the extent expressly varied by a signed Master Services Agreement or Statement of Work.

12. Governing Law and Jurisdiction

12.1 Save as otherwise agreed in writing, these Terms are governed by the laws of England and Wales and disputes are subject to the exclusive jurisdiction of the courts of England and Wales.

13. Limitation of Liability

13.1 The Contractor excludes all liability for indirect or consequential loss, including loss of profit or business interruption, howsoever arising. 13.2 Nothing in these Terms excludes or limits liability for death, personal injury, or fraud.

16. Payment

16.1 Invoices are payable within 30 days of the invoice date. 16.2 Interest accrues on overdue amounts at 8% per annum above the Bank of England base rate, calculated daily.

19. Hardware and Third-Party Products

19.1 Hardware supplied under a Statement of Work is sold on an 'as is' basis save for the manufacturer's own warranty, which the Contractor will assign to the Client on request.